

**SYNTHETIC APPELLATE COURT DOCUMENT — FICTIONAL CASE
— NOT AN ACTUAL ORDER**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

Appellate No. SYN-CA4-26-CV-4103 · Record-Complete and Briefing Order

Entered February 9, 2026

The district clerk has certified and transmitted the record designated for this interlocutory appeal. The certification includes the pleadings, municipal enactment materials, declarations and exhibits, preliminary-injunction submissions, stipulated facts and alternatives, January 19 hearing transcript, January 23 memorandum and injunction, district stay papers and denial, notice of appeal, and certified docket. The record is complete for briefing as of February 9, 2026.

The City's No-Additional-Transcript Certificate confirms that the written January 19 transcript was filed in the district court on January 20 and is included in the transmitted materials. No party has identified another reported proceeding needed to address the challenged preliminary order. A later request to correct or supplement the record must identify a genuine omission and the district entry from which the proposed material arises.

The appeal proceeds under 28 U.S.C. § 1292(a)(1). Record completion does not imply that the district court has entered a final merits judgment. The facial and as-applied First Amendment claims remain pending below, as do requests for final declaratory and permanent relief. Briefing in this Court shall address the grant and terms of the January 23 preliminary injunction and issues properly encompassed by that interlocutory review.

Briefing Schedule

The appellant's opening brief is due Monday, March 23, 2026. The ordinary forty-day period measured from February 9 reaches Saturday, March 21; the deadline therefore continues to the next day that is not a Saturday, Sunday, or legal holiday. The appellee's response brief is due Wednesday, April 22, 2026. The appellant's reply brief, if any, is due Wednesday, May 13, 2026.

Each filing shall comply with the applicable form, length, citation, disclosure, and service requirements. Record citations must permit the Court and opposing counsel to locate the relied-upon material. The parties should distinguish the January 23 preliminary merits analysis from the January 28 district stay ruling and the February 6 appellate stay denial. A stay decision does not itself resolve the questions presented for merits review.

The City may challenge constitutional tailoring, the injunction's operative specificity, and its security treatment to the extent those issues were preserved and fall within this appeal. The Guild may defend the existing interim protection and propose a corrective disposition that does not dissolve it. Neither side should ask the Court to decide claims or factual developments outside the district record transmitted for the challenged order.

An extension request must be made by motion before the affected deadline and must state concrete grounds, prior extensions, the opposing party's position, and the effect on the recurring event calendar. The existence of later fairs does not guarantee expedition or an extension; counsel should plan to meet the dates stated above.

Continuing Administration

The February 6 order denied the City's request for a stay. The January 23 preliminary injunction consequently remains in force unless altered through a later lawful order. This briefing schedule neither expands nor narrows that injunction, sets a bond, reopens the stay motion, or directs the district court's management of matters outside the interlocutory appeal.

No determination concerning oral argument is made now. The Court will consider the briefs, the record, and the governing procedures before deciding whether argument would aid resolution. Counsel shall notify the clerk promptly of a settlement, municipal amendment, material district-court order, or other development that may affect jurisdiction or the requested appellate relief. Such notice should describe the event without supplementing the record by assertion.

The announced Guild fairs occur on February 14, April 11, June 13, August 8, October 10, and December 12. The schedule accounts for a recurring dispute while allowing full principal briefs. It does not assume that any event will produce a permit conflict or that passage of one date will resolve the controversy. Questions of mootness, changed circumstances, or modification must be presented on an actual record if they arise.

The Clerk shall docket this order and serve counsel electronically on February 9, 2026. The parties' January 30 appearances and disclosures remain effective. The City Docketing Statement and No-Additional-Transcript Certificate are accepted for filing. Entered by the Court on the date stated above.